IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
PRINCIPAL BENCH

ITEM No. 01
(CAA)-35(PB)/2018

IN THE MATTER OF:

Aadhunik Relators	....	Petitioner
And		
Haldiram Products Private Limited	....	Respondent

Order under Section 230-232 of the Companies Act

Order delivered on 28.09.2018

Coram:
CHIEF JUSTICE (RTD.) M.M. KUMAR
HON'BLE PRESIDENT

SH. S. K. MOHAPATRA
HON'BLE MEMBER (TECHNICAL)

PRESENTS:
For Petitioners: Mr. Aashik Middha, Pradeep Khurana & Hardev Singh, PCS,

For Income Tax: Mr. Deepak Aanand, Standing Counsel

ORDER

While dictating the order it is seen that official liquidator has made the following observation:

"The transferor company, has acquired land at Sonepat on 31.07.2007 at a consideration of Rs. 3,22,59,069/- and the said land reflected in the balance sheet of the company till 31st March, 2013. Later on from 2014 onwards the land is not showing in the balance sheet of the transferor company."

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In this regard it has been clarified that the transferor company had entered into a sale agreement and advance amount was received for sale of the said land. However since the buyer failed to pay the remaining sale consideration, the advance received was forfeited by the transferor company and after adjustment of the advance, the book value of the land reduced to 'zero' in the books of accounts of the transferor company.

The Scheme however appears to be silent in respect of transfer of the said land. The transferee company is a different entity and it is not clear for what consideration the precious land of a different company will be transferred to it. It is also not made clear as to what will be the amount of stamp duty to be paid by Transferee Company on transfer of the land in question.

Therefore the petitioner companies are directed to clarify as to whether there is any provision in the Scheme for transfer of the said land; the transfer of land is proposed for what consideration and what will be the amount of stamp duty for the transfer of said land in the light of its market value.

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The petitioner companies are directed to file their clarification within 10 days from the date of this order with a copy in advance to the Regional Director, Official Liquidator and the department of Income Tax.

Any response to the clarification can be filed within 7 days after receiving such clarification.

List the matter on 18th October 2018.

Sd/-

28.9.2018

(M.M.KUMAR)
PRESIDENT

Sd/-

(S. K. MOHAPATRA)
MEMBER (TECHNICAL)

DPK – 28.09.2018